Outside the court, Kejriwal, who had built his party around the anti-corruption plank, broke down mid-sentence before the cameras while reflecting on the twists of fate. "A sitting chief minister was dragged out of his home and thrown in jail for six months, a first in the country," he said, his voice heavy with emotion.

The judgment, thick with loaded one-liners, could become a political goldmine for the beleaguered AAP. The court found the prosecution's case resting entirely on inadmissible evidence and uncorroborated testimony—despite investigating nearly 300 witnesses, the CBI produced no cash recoveries, no financial trails, no incriminating electronic evidence, and no contemporaneous documents linking any of the accused to bribes.

As for AAP's Delhi Excise Policy 2021-22, the court concluded it emerged from a transparent and consultative process, with proper institutional oversight. This upended the very premise of the case. In July 2022, the CBI probe was initiated after the Delhi chief secretary submitted a report to L-G V.K. Saxena alleging procedural lapses and losses of over Rs 580 crore due to the policy. In a separate allegation, the Enforcement Directorate (ED) claimed Rs 100 crore in kickbacks. Under a legal cloud, the AAP government had rolled back the policy on its own.

Takeaways

- **Special court upholds AAP govt's 2021 excise policy, faults CBI's 'fragile narrative'**
- **AAP will go to town with the acquittal for 2027 polls in Punjab, Gujarat, Goa**

For the party, the fight now is to win back the ballot of those who voted elsewhere last year. "Even in defeat, AAP's difference in vote share with the BJP was not much," points out Prof. Tanvir Aeijaz of Ramjas College, Delhi University. While AAP won only 22 of Delhi's 70 seats against the BJP's 48, it polled 43.5 per cent of the votes. The BJP was only slightly ahead at 45.8 per cent; the Congress took 6.4 per cent. "If you hold elections today, Kejriwal will win all 70 seats," AAP's No. 2, Sisodia, who spent 530 days in jail, told INDIA TODAY. "He's now a court-certified honest politician."

THE LONG GAME

Delhi's next election is only in 2030. But Punjab, the only state where AAP is in power, goes to the polls next year. So do two other states where it has stakes. "Gujarat and Goa go to polls towards the end of 2027, after Punjab. In all states where we have a significant presence, including Delhi, this verdict will become a central plank of our communication," says AAP leader Jasmin Shah. The ruling party in Delhi, though, is not impressed. "There are so many flaws in the judgment. We will point them out in the appeal," says Delhi BJP president Virendra Sachdeva.

The road forward for AAP is hardly going to be easy. Much rides on its performance in the upcoming poll battles—and not just symbolically. A poor showing could cost the party even its national party status. Meanwhile, the CBI's appeal against the special court judgment comes up soon before the Delhi High Court, while the ED's parallel money-laundering proceedings are still alive—though considerably weakened now.

"Anyone who thought Kejriwal was finished was living in a fool's paradise. That said, ideology can only take you so far," says Rahul Verma of the Centre for Policy Research. "In Punjab, they are not doing too well." Still, Kejriwal and AAP have caught a break, it's for them to see how far they can ride it. They've been known to take a half-chance before. ■

▶ UTTAR PRADESH

Long, Slow Migration Bleeds BSP

A caravan of old Kanshi era veterans find a new, hospitable refuge with Akhilesh

By **Avaneesh Mishra**



ANI

LOSING FRIENDS
BSP supremo Mayawati

IN RECENT YEARS, NO ONE HAS MISSED a curious phenomenon: the Bahujan Samaj Party (BSP) often choosing to be a sort of non-performer, almost of its own accord. The Congress, of course, can be a non-performer despite itself. As Uttar Pradesh inches towards the 2027 assembly election, this has spiked the slow but steady haemmorrhaging of senior talent from the two parties. The receptacle is often the strongest secular bet: the Samajwadi Party (SP). Thus, the contest in the state appears to be narrowing